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General Knowledge

Indian Polity

STUDY NOTES

Parts of the Indian Constitution

Introduction:

- The Indian Constitution is the *longest written constitution* in the world, originally having 395 articles in 22 parts and 8 schedules.
- Later, three parts were added as modifications, namely **9A Municipalities, 9B Co-operative societies, and 14A tribunals**. Now, it consists of **448 articles** in **25 parts** and **12 schedules**.
- It was drafted by the **Constituent Assembly** and adopted on **26th November 1949** but came into effect on **26th January 1950**.
- The Constitution reflects the vision of **Dr. B.R. Ambedkar**, the Chairman of the Drafting Committee.

Important Facts:

- **Handwritten Constitution**: The original document was handwritten in both Hindi and English.
- Took **2 years, 11 months, and 18 days** to complete drafting.
- It has been amended **106 times** as of 2024, showing its dynamic nature.

DID YOU KNOW?

The Constitution is so lengthy, it would take over 8 hours to read out loud—longer than a cricket test match!

List of all the 25 Parts of the Constitution in Detail:

- **Part I: The Union and Its Territory (Articles 1 to 4)**
  - Declares India as a "Union of States." The unity of India is **indestructible**.
  - Deals with the creation, reorganization, and modification of states and union territories.
- **Part II: Citizenship (Articles 5 to 11)**
  - Defines the citizenship rules at the commencement of the Constitution.
  - **Articles 9-11** address the acquisition, termination, and regulation of citizenship.
- **Part III: Fundamental Rights (Articles 12 to 35)**
  - Inspired by the **US Bill of Rights**, these rights are enforceable in courts.
  - Guarantees fundamental rights like:
    - Right to Equality: Articles 14-18
    - Right to Freedom: Articles 19-22
    - Right against Exploitation: Articles 23-24

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    - Right to Freedom of Religion: Articles 25-28
    - Cultural and Educational Rights: Articles 29-30
    - Right to Constitutional Remedies: Article 32

- **Part IV: Directive Principles of State Policy (DPSP) (Articles 36 to 51)**
  - Aimed at creating social and economic justice.
  - Provides **non-justiciable guidelines** for the government to promote welfare.
  - Article 37 - DPSP are not legally enforceable by any court, but they are fundamental to the governance of the country
- **Part IVA: Fundamental Duties (Article 51A)**
  - Added by the **42nd Amendment in 1976** based on **Swaran Singh Committee** recommendations.
  - Lists **11 fundamental duties** like respecting the Constitution and protecting the environment.
- **Part V: The Union (Articles 52 to 151)**
  - Covers three branches of the Union:
    - Union Executive (President, Vice-President) – Articles 52-78
    - Union Legislature (Parliament) – Articles 79-122
    - Union Judiciary (Supreme Court) – Articles 124-147
- **Part VI: The States (Articles 152 to 237)**
  - Discusses three broad heads:
    - State Executive (Governor and Chief Minister) – Articles 153-167
    - State Legislature – Articles 168-212
    - State Judiciary (High Courts) – Articles 214-237
- **Part VII: States in the B Part of the First Schedule (Repealed by 7th Amendment)**
- **Part VIII: The Union Territories (Articles 239 to 242)**
  - Union Territories are under the direct control of the Central Government.
  - The President appoints an administrator for each UT.
- **Part IX: The Panchayats (Articles 243 to 243O)**
  - Added by the **73rd Constitutional Amendment Act of 1992**, promoting village-level governance.

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- Mandates the establishment of **Panchayati Raj institutions** for local self-governance in rural areas.

- **Part IXA: The Municipalities (Articles 243P to 243ZG)**
  - Provides for **urban local governance.**
  - Added by the **74th Constitutional Amendment Act of 1992**, aimed at organizing municipalities and empowering urban local bodies.
- **Part IXB: Co-operative Societies (Articles 243ZH to 243ZT)**
  - Introduced by the **97th Amendment (2011)** to regulate cooperative societies as self-help organizations.
- **Part X: The Scheduled and Tribal Areas (Articles 244 to 244A)**
  - The Fifth Schedule pertains to the administration of Scheduled Areas.
  - The Sixth Schedule applies to Tribal Areas in **Assam, Meghalaya, Tripura, and Mizoram.**
- **Part XI: Relations Between the Union and the States (Articles 245 to 263)**
  - Covers three relations:
    - Legislative relations (Articles 245-255)
    - Administrative relations (Articles 256-263)
    - Financial relations (Articles 264-289)
- **Part XII: Finance, Property, Contracts, and Suits (Articles 264 to 300A)**
  - Governs the distribution of revenue and financial responsibilities between the Union and the States.
  - Defines the rights and obligations concerning property and contracts.
- **Part XIII: Trade and Commerce (Articles 301 to 307)**
  - Ensures freedom of trade and commerce across the territory of India.
  - Inspired by the **Australian Constitution.**
- **Part XIV: Services Under the Union and the States (Articles 308 to 323)**
  - Deals with the recruitment and conditions of service of government employees.
- **Part XIVA: Tribunals (Articles 323A to 323B)**
  - Added by the **42nd Amendment Act in 1976.**
  - Tribunals handle disputes related to administrative and tax issues.
- **Part XV: Elections (Articles 324 to 329A)**

- Establishes the **Election Commission of India** to supervise elections.

- **Part XVI: Special Provisions for Certain Classes (Articles 330 to 342)**
  - Provides special provisions for **Scheduled Castes, Scheduled Tribes, and other backward classes.**
  - Includes reservations in legislatures and special safeguards.
- **Part XVII: Official Language (Articles 343 to 351)**
  - **Articles 343 and 344** of the Indian Constitution provide the key provisions for determining the official language of the Union.
  - The **Eighth Schedule** lists the **official languages** of India.
- **Part XVIII: Emergency Provisions (Articles 352 to 360)**
  - Recognizes three types of emergencies:
    - National Emergency (Article 352)
    - President's Rule (Article 356)
    - Financial Emergency(Article 360)
- **Part XIX: Miscellaneous Provisions (Articles 361 to 367)**
  - Includes protections for the President and Governors, interpretations, and provisions for repeals.
- **Part XX: Amendment of the Constitution (Article 368)**
  - Outlines the procedure for amending the Constitution.
- **Part XXI: Temporary, Transitional, and Special Provisions (Articles 369 to 392)**
  - Includes provisions for temporary and transitional arrangements for states.
  - Protects the cultural and economic interests of certain regions.
- **Part XXII: Short Title, Commencement, and Repeals (Articles 393 to 395)**
  - Contains the short title and commencement details of the Constitution.

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Parts	Subjects	Articles
Part I	The Union and its Territory	1 to 4
Part II	Citizenship	5 to 11
Part III	Fundamental Rights	12 to 35
Part IV	Directive Principles of State Policy (DPSP)	36 to 51
Part IVA	Fundamental Duties	51A
Part V	The Union (Executive, Legislature, Judiciary)	52 to 151
Part VI	The States (Executive, Legislature, Judiciary)	152 to 237
Part VII	States in B part of First Schedule (Repealed)	-
Part VIII	The Union Territories	239 to 242
Part IX	The Panchayats	243 to 243O
Part IXA	The Municipalities	243P to 243ZG
Part IXB	Co-operative Societies	243ZH to 243ZT
Part X	The Scheduled and Tribal Areas	244 to 244A

Part XI	Relations between the Union and the States	**245 to 263**
Part XII	Finance, Property, Contracts, and Suits	**264 to 300A**
Part XIII	Trade and Commerce within India	**301 to 307**
Part XIV	Services under the Union and the States	**308 to 323**
Part XIVA	Tribunals	**323A to 323B**
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